

9:00 a.m. CALENDAR

CHALLENGER v. BLANKENSHIP, et al.
CU25-09577

Motion by Plaintiff for Sanctions (Against Counsel for Defendant ARTHUR BLANKENSHIP)

TENTATIVE RULING

C.C.P. §128.7(a) requires any motion to be signed by the party or attorney filing it, or corrected with signature promptly after the absence of signature is identified to that party or attorney.

Every pleading, petition, written notice of motion, or other similar paper shall be signed by at least one attorney of record in the attorney's individual name, or, if the party is not represented by an attorney, shall be signed by the party. Each paper shall state the signer's address and telephone number, if any. Except when otherwise provided by law, pleadings need not be verified or accompanied by affidavit. An unsigned paper shall be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party.

While Plaintiff signed her declaration attached to the motion, no signature appears on the motion itself (although there is a signature line and the end of the motion for a signature).

This omission was identified in the opposition papers filed and served by mail on June 11, but has not been "promptly corrected".

In addition to the failure to sign the motion papers, this motion fails on substantive grounds.

The two statutory bases for sanctions claimed in Plaintiff's motion are C.C.P. §128.5 and C.C.P. §128.7.

C.C.P. §128.7 is specific to the filing of papers, not oral statements made by one party's counsel to the other party.

C.C.P. §128.5(a) authorizes recovery only of "the reasonable expenses, including attorneys fees, incurred by another party" resulting from the frivolous conduct.

Self-represented parties, even if they are licensed California attorneys, are not allowed to recover attorneys fees even when an applicable statute generally authorizes a prevailing party to recover attorneys fees. Honchariw v. PMF CA REIT, LLC (2025) 117

Cal.App.5th 827, 835-839, which while granted review by California Supreme Court still stands as citable persuasive authority pending that review, per 2026 Cal.LEXIS 1392.

The court also notes that Plaintiff earlier obtained a fee waiver order, and thus did not pay a filing fee or incur any other reasonable expense to file this motion.

Finally, unlike the cases cited by Plaintiff's motion, largely from courts other than California state courts, that imposed sanctions and/or reported incidents to the State Bar, involving repeated instances of very offensive words and/or conduct, the court finds that the sole comment at issue in this motion was not sufficiently egregious to warrant issuance of sanctions or reporting to the State Bar.

Thus, for many independent reasons, this motion is denied in its entirety.

Despite the inability of counsel against whom this motion was filed to remember the incident at issue, the court appreciates his willingness to apologize for the subject statement. Litigants, and counsel, are human, and the court does not expect that human emotions such as frustration will not at times be stirred up in litigation. However, it is in the best interest of all to avoid making statements that could be reasonably interpreted to be disrespectful.

9:30 a.m. CALENDAR

LINE

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**IN THE MATTER OF THE LITTLE TREE TRUST DATED 9/24/1999
FPR050043**

Trustee's Report, Fourth and Final Account, and Petition for Allowance of Fees and Distribution of Trust [Probate Code §17200; Solano County Superior Court Local Rules 7.100-7.106]

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed. The fourth and final accounting is approved and settled. The trustee is approved to pay \$4,153.75 and \$79.05 in attorney fees and costs incurred in the conservatorship proceeding. The trustee is further approved to pay \$8,087.50 and \$542.66 for attorney fees and costs in this trust matter. The trustee is directed to distribute the trust estate pursuant to the terms of The Little Tree Trust and its amendments.
